Syllabus

MARSHALL, SECRETARY OF LABOR, ET AL. *v.* BARLOW'S, INC.

APPEAL FROM THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF IDAHO

No. 76–1143. Argued January 9, 1978—Decided May 23, 1978

Appellee brought this action to obtain injunctive relief against a warrantless inspection of its business premises pursuant to § 8 (a) of the Occupational Safety and Health Act of 1970 (OSHA), which empowers agents of the Secretary of Labor to search the work area of any employment facility within OSHA's jurisdiction for safety hazards and violations of OSHA regulations. A three-judge District Court ruled in appellee's favor, concluding, in reliance on *Camara* v. *Municipal Court,* 387 U. S. 523, 528–529, and *See* v. *Seattle,* 387 U. S. 541, 543, that the Fourth Amendment required a warrant for the type of search involved and that the statutory authorization for warrantless inspections was unconstitutional. *Held:* The inspection without a warrant or its equivalent pursuant to § 8 (a) of OSHA violated the Fourth Amendment. Pp. 311–325.

(a) The rule that warrantless searches are generally unreasonable applies to commercial premises as well as homes. *Camara* v. *Municipal Court, supra,* and *See* v. *Seattle, supra.* Pp. 311–313.

(b) Though an exception to the search warrant requirement has been recognized for "closely regulated" industries "long subject to close supervision and inspection," *Colonnade Catering Corp.* v. *United States,* 397 U. S. 72, 74, 77, that exception does not apply simply because the business is in interstate commerce. Pp. 313–314.

(c) Nor does an employer's necessary utilization of employees in his operation mean that he has opened areas where the employees alone are permitted to the warrantless scrutiny of Government agents. Pp. 314–315.

(d) Insofar as experience to date indicates, requiring warrants to make OSHA inspections will impose no serious burdens on the inspection system or the courts. The advantages of surprise through the opportunity of inspecting without prior notice will not be lost if, after entry to an inspector is refused, an *ex parte* warrant can be obtained, facilitating an inspector's reappearance at the premises without further notice; and appellant Secretary's entitlement to a warrant will not depend on his demonstrating probable cause to believe that conditions on the premises